Zimbabwe

Printed Publications Act

Chapter 25:14

Legislation as at 31 December 2016

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Printed Publications Act (Chapter 25:14)
Contents

1. Short title 1

2. Interpretation 1

3. Act not to extend to parliamentary papers 1

4. Particulars to be set out in books printed or published in Zimbabwe 1

5. Delivery of books published in Zimbabwe to certain libraries 2

Schedule (Section 5(7) and (8)) 3

Zimbabwe

Printed Publications Act

Chapter 25:14

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[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]

AN ACT to consolidate and amend the law relating to the printing and publication of books, newspapers, periodicals and other printed publications and the preservation of books, newspapers, periodicals and other printed publications published in Zimbabwe.

1. Short title

This Act may be cited as the Printed Publications Act *[Chapter 25:14]*.

2. Interpretation

(1) In this Act—

"**book**" includes—

(a) a newspaper, periodical or other printed publication published at regular or irregular intervals; and

(b) every part or division of a book, pamphlet, sheet of printing, map, plan, chart or table separately published;

"**Minister**" means the Minister of Home Affairs or any other Minister to whom the President may, from time to time, assign the administration of this Act.

(2) Expressions referring to printing shall in this Act be construed as including references to any other means of representing or reproducing words or figures in visible form.

3. Act not to extend to parliamentary papers

Nothing in this Act contained shall extend to or be construed as extending to any report, minutes or other book or paper printed or published by the order or under the authority of Parliament for the use of Parliament.

4. Particulars to be set out in books printed or published in Zimbabwe

(1) Each book printed or published in Zimbabwe shall bear an imprint legibly setting out—

(a) the full and correct name of the printer concerned and the place where such book was printed; and

(b) the full and correct name of the publisher concerned and his place of business; and

(c) the year of publication of such book.

(2) A person who knowingly—

(a) prints or publishes; or

(b) causes to be printed or published;

a book which does not bear an imprint referred to in subsection (1) shall, subject to subsection (3), be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection as amended by section 4 of Act No. 22 of 2001]

(3) The Minister may—

(a) by statutory instrument exempt from the requirements of subsection (1) such classes of books used for the purposes of—

(i) the State; or

(ii) courts of law; or

(iii) statutory bodies established by or under any law or an Order in Council made in pursuance of the Rhodesia and Nyasaland Act, 1963, of the United Kingdom; or

(iv) trade or business,

as may be specified in such notice; or

(b) subject to such conditions as he may impose and upon the application in writing of the printer or publisher of a particular book, exempt from the requirements of subsection (1) all or any of the copies of such book.

5. Delivery of books published in Zimbabwe to certain libraries

(1) Subject to this section, the publisher of each book published in Zimbabwe shall, within a period of thirty days from the date of publication of such book, donate and deliver free of charge a copy of such book to—

(a) the Director of National Archives appointed in terms of section 3 of the National Archives of Zimbabwe Act *[Chapter 25:06]*; and

(b) the Director of the National Library and Documentation Service referred to in section 6 of the National Library and Documentation Service Act *[Chapter 25:10]*; and

(c) the authority having control of the Historic Reference Collection in Bulawayo.

[paragraph amended by section 17 of Act 5 of 2011]

(2) Each of the persons referred to in paragraphs (a) and (c) of subsection (1) shall—

(a) give a receipt in writing for each copy of a book delivered to him or to it, as the case may be, in terms of that subsection; and

(b) unless the Minister otherwise directs, preserve the copy referred to in paragraph (a) in a safe place.

(3) Each copy of a book donated and delivered in terms of subsection (1) shall be—

(a) a copy of the whole of such book with all maps, prints, engravings or illustrations or other supplementary material, if any, belonging thereto, finished and coloured in the same manner as the best copies of such book are finished and coloured; and

(b) in the case of a book which is bound, bound in the same manner as the best copies of such book are bound; and

(c) on the best paper on which such book is printed.

(4) A publisher who fails to comply with this section shall be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment

[subsection as amended by section 4 of Act No. 22 of 2001]

(5) If a person is convicted of an offence in terms of subsection (4), the court convicting the person may, in addition to imposing a penalty in terms of that subsection, order the person to comply with this section by donating and delivering free of charge a copy of the book concerned of the appropriate quality to the person to whom or to which, as the case may be, donation and delivery of such copy should have been made in terms of subsection (1).

(6) This section shall not apply to any second or subsequent edition of a book unless such edition contains additions or alterations—

(a) in the printing or binding; or

(b) in the maps, prints, engravings or illustrations or other supplementary material;

belonging thereto.

(7) It shall not be necessary for the publisher of any book belonging to a class of book specified in the Schedule to donate and deliver free of charge a copy of such book in terms of subsection (1) to a person referred to in paragraph (a) or (c) of that subsection unless, as respects any particular such book, such person makes a demand in writing for the donation and delivery free of charge of a copy thereof.

(8) The Minister may, by statutory instrument, add to, amend or replace the whole or any part of the Schedule.

Schedule (Section 5(7) and (8))

Books exempted from automatic donation and delivery free of charge

1. Bookplates.
2. Books designed to enable persons to keep daily records of events and commonly known as diaries.
3. Calendars.
4. Christmas cards and similar cards for use in marking anniversaries and occasions.
5. Colouring books.
6. Commercial, entertainment or industrial catalogues, circulars, coupons, labels, leaflets, manuals, price lists, programmes, prospectuses, show cards and other advertising material for commercial, entertainment or industrial purposes.
7. Forms of all kinds in blank.
8. Packaging materials.
9. Postcards.
10. Posters.
11. Tickets.
12. Wall sheets for instructional purposes.

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